Date: April 9, 2019

Mr. Richard C. Visek
Principal Deputy Legal Adviser and
Designated Agency Ethics Official
Office of the Legal Adviser
Department of State

Re: Ethics Undertakings

Dear Mr. Visek:

I am committed to the highest standards of ethical conduct for government officials. If confirmed as the Ambassador to the Kingdom of Sweden, as required by 18 U.S.C. § 208(a), I will not participate personally and substantially in any particular matter in which I know that I have a financial interest directly and predictably affected by the matter, or in which I know that a person whose interests are imputed to me has a financial interest directly and predictably affected by the matter, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1), or qualify for a regulatory exemption, pursuant to 18 U.S.C. § 208(b)(2). I understand that the interests of the following persons are imputed to me: any spouse or minor child of mine; any general partner of a partnership in which I am a limited or general partner; any organization in which I serve as officer, director, trustee, general partner or employee; and any person or organization with which I am negotiating or have an arrangement concerning prospective employment.

I understand that a heightened prospect of a conflict of interest could exist as to companies that maintain a presence in Sweden, because they may be more likely than other companies to seek official assistance from or make contact with the Embassy or otherwise be affected by policies and engagement implemented by the Embassy. I will remain alert to the possible need to recuse where appropriate.

I will retain my position as a trustee of the Revocable Family Trust 1. I will not receive any fees for the services that I provide as a trustee during my appointment to the position of Ambassador. I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the financial interests of the Revocable Family Trust 1, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1), or qualify for a regulatory exemption, pursuant to 18 U.S.C. § 208(b)(2).

Upon confirmation, I will resign from the following positions: General Partner, Howery Investments, LP; Original Managing Member, Founders Zen, LP; Original Managing Member, The Founders Fund III Entrepreneurs Fund, LP; Original Managing Member, The Founders Fund II Entrepreneurs Fund, LP; Investment Partner, The Founders Fund VI Entrepreneurs Fund, LP; and Managing Member, The Founders Fund V Entrepreneurs Fund, LP. For a period of one year after my resignation from these entities, I will not participate personally and substantially in any particular matter involving specific parties in which I know any of these entities is a party or represents a party, unless I am first authorized to participate, pursuant to 5 C.F.R. § 2635.502(d).

Upon confirmation, I will resign from the following positions with entities in which I hold equity:

1. Co-manager, Windward One LLC;
2. Director and President, FF humbition, Inc.;
3. Director, ZocDoc, Inc.;
4. Director, Quantcast Corporation;
5. Managing Member, The Founders Fund IV Management, LLC;
6. Managing Member, The Founders Fund IV, LP;
7. Managing Member, The Founders Fund IV Principals Fund, LP;
8. Managing Member, The Founders Fund III Management, LLC;
9. Managing Member, The Founders Fund Alpha Management, LLC;
10. Partner and Managing Member, Founders Fund, LLC;
11. Managing Member, The Founders Fund II Management, LLC;
12. Managing Member, Wiggin LLC;
13. Managing Member, Solaris 50, LLC;
14. Original Managing Member, The Founders Fund III, LP;
15. Original Managing Member, The Founders Fund III Principals Fund, LP;
16. Original Managing Member, Lembas II, LP;
17. Original Managing Member, The Founders Fund II, LP;
18. Original Managing Member, The Founders Fund II Principals Fund, LP;
19. Trustee, The Sage 2017 Trust;
20. Manager and Investment Committee Member, The Founders Fund Management, LLC;
21. Trustee, The Sage Trust;
22. Director and CFO of Corpster, Inc.;
23. Original Managing Member, Lembas III, LP;

Because I will retain passive investment interests in these entities, with regard to each of these funds, I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the financial interests of the entity or its underlying holdings, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1), or qualify for a regulatory exemption, pursuant to 18 U.S.C. § 208(b)(2).

In addition, before I assume the duties of the position, The Founders Fund IV Management, LLC will accelerate the vesting of 100 percent of the unvested portion of my current interest in The Founders Fund IV Management, LLC and accelerate the vesting of my carried interest in The Founders Fund IV Management, LLC. For a period of two years after the acceleration, I will not participate personally and substantially in any particular matter involving specific parties in which I know The Founders Fund IV Management, LLC is a party or represents a party, unless I first receive a written waiver pursuant to 5 C.F.R. § 2635.503(c).

I resigned from my position as Manager of Kitsune LLC in August 2018 and from my position as Director of Careportal, Inc., dba Cedar, in June 2018. Because I retain a passive investment interest in these entities, I will not participate personally and substantially in any

particular matter that to my knowledge has a direct and predictable effect on either entity, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1), or qualify for a regulatory exemption, pursuant to 18 U.S.C. § 208(b)(2).

I will retain the right to obtain a three percent interest in any fund formed by Founders Fund, LLC, or its successor in interest, in future years, but will divest all interests, including any carried interests, in any such future fund that makes its first capital call during my tenure as Ambassador. For a period of two years after my resignation, I will not participate personally and substantially in any particular matter involving specific parties in which I know Founders Fund, LLC, or its successor in interest, is a party or represents a party, unless I first receive a written waiver pursuant to 5 C.F.R. § 2635.503(c).

Upon confirmation, I will resign from the following positions with entities in which I have a financial interest:

1. Investment Partner, The Founders Fund VI Principals Fund, LP;
2. Managing Member, The Founders Fund VI Management, LLC;
3. Managing Member, The Founders Fund V Management, LLC;
4. Managing Member, The Founders Fund V Principals Fund, LP;
5. Investment Partner, The Founders Fund VI, LP;
6. Managing Member, The Founders Fund V, LP;

I will divest or forfeit my financial interests in these entities within 150 days of my confirmation. With regard to each of these entities, I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the financial interests of the entity or its underlying holdings, until I have divested it, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1), or qualify for a regulatory exemption, pursuant to 18 U.S.C. § 208(b)(2). For a period of one year after my resignation, I also will not participate personally and substantially in any particular matter involving specific parties in which I know any of these entities, is a party or represents a party, unless I am first authorized to participate, pursuant to 5 C.F.R. § 2635.502(d).

Within 90 days of my confirmation, I will divest my interests in the following entities: AbbVie Inc.; Apple Inc.; Alphabet Inc. (Class C); Alphabet Inc. (Class A); Celgene Corporation; Cognizant Technology Solutions Corporation; Constellation Brands, Inc.; F5 Networks, Inc.; Gilead Sciences, Inc.; LKQ Corporation; Mastercard Incorporated; Microsoft Corporation; ON Semiconductor Corporation; Oracle Corporation; Royal Caribbean Cruises Ltd.; The Sherwin-Williams Company; Thermo Fisher Scientific Inc.; Time Warner Inc.; Trimble, Inc.; Xilinx, Inc.; PayPal Holdings, Inc.; NVIDIA Corporation; and Tesla, Inc. With regard to each of these entities, I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the financial interests of the entity until I have divested it, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1), or qualify for a regulatory exemption, pursuant to 18 U.S.C. § 208(b)(2).

Within 120 days of my confirmation, I will divest or forfeit my interests in the following entities: The SaaStr Fund I, L.P. and ADREM Z LLC. With regard to each of these entities, I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the financial interests of the entity or its underlying holdings, until I have divested it, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1), or qualify for a regulatory exemption, pursuant to 18 U.S.C. § 208(b)(2).

Within 150 days of my confirmation, I will divest or forfeit my interest in Facebook, Inc. I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the financial interests of Facebook, Inc. until I have divested it, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1), or qualify for a regulatory exemption, pursuant to 18 U.S.C. § 208(b)(2).

I understand that I may be eligible to request a Certificate of Divestiture for qualifying assets and that a Certificate of Divestiture is effective only if obtained prior to divestiture. Regardless of whether I receive a Certificate of Divestiture, I will ensure that all divestitures discussed in this agreement occur within the agreed upon timeframes and that all proceeds are invested in non-conflicting assets.

I have been advised that the duties of the position of Ambassador to the Kingdom of Sweden may involve particular matters affecting the financial interests of the following entities: Airbnb, Inc.; Knewton, Inc.; Palantir Technologies Inc.; Quantcast Corporation; Ripple Labs, Inc.; Stripe, Inc; and Uber Technologies, Inc. The agency has determined that it is not necessary at this time for me to divest my interests in these entities because my recusal from particular matters in which these interests pose a conflict of interest will not substantially limit my ability to perform the essential duties of the position of Ambassador to the Kingdom of Sweden. Accordingly, for as long as I own these interests, I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the financial interests of any of these entities, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1), or qualify for a regulatory exemption, pursuant to 18 U.S.C. § 208(b)(2). In addition to particular matters in which those entities are a party, this would include the following matters:

- **Airbnb, Inc.:** Matters focused on short-term accommodations in Sweden, including such matters in the tourism industry; matters involving online privacy and regulation of the collection and storage of personal information; and matters involving the use of technology platforms to connect service providers and customers.
- **Knewton, Inc.:** Matters involving adaptive learning technologies.
- **Palantir Technologies Inc.:** Matters involving intelligence collection or analysis by private entities or related intelligence sharing, as well matters related to privacy and regulation of the collection and storage of personal information.
- **Quantcast Corporation:** Matters related to online data collection and analysis and online advertising.

- **Ripple Labs, Inc.:** Matters related to cryptocurrency, blockchain, and online banking, including online payments, as well as matters related to financial transfers more generally.
- **Stripe, Inc.:** Matters related to online banking, including online payments, as well as matters related to financial transfers more generally, as well as matters related to online privacy and regulation of the collection and storage of personal information.
- **Uber Technologies, Inc.:** Matters related to private-sector, short-distance transportation, including ride-sharing (this would not extend to matters related to aviation); matters involving privacy and regulation of the collection and storage of personal information; and matters involving the use of technology platforms to connect service providers and customers.

You have advised me that, at this time, I do not need to divest my interests in the following investment funds, insofar as I do not hold them within other funds or entities which I have committed to divest pursuant to this agreement:

- ADREM A LLC;
- Single File LLC;
- TI Platform IF SPV, L.P.;
- Gigafund 0.2, LP;
- FF SpaceX IV, LLC;
- Zenick LLC;
- Meta Stable Edge, L.P.;
- Sail Investments LLC;
- Crystal Towers Capital Fund TI B, L.P.;
- Crystal Towers Capital, L.P.;
- Crystal Towers Capital Associates, L.P.;
- Polychain Fund I LP;
- Initialized III L.P.;
- Valor Equity Partners IV-B L.P.;
- The Founders Fund, LP;
- The Founders Fund II Principals Fund, LP;
- The Founders Fund III Principals Fund, LP;
- The Founders Fund IV Principals Fund, LP;
- Windward One LLC;
- Revolution Capital II, LLC., Series 3.4;
- Revolution Capital II, LLC., Series 5.2;
- Revolution Capital III, LP;
- fbFund, LLC;
- FF Angel, LLC;
- 500 Startups, LP;
- Crunch Fund I, LP;

- Rumson Protostar LLC;
- TechFellow 2010 Fund, LP;
- FF Angel III, LLC;
- TechFellow 2011 Fund, LP;
- FF Angel IV, LLC;
- Revolution Capital, LLC., Series 4.1;
- Revolution Capital II, LLC, Series 2.1;
- Revolution Capital II, LLC, Series 2.2;
- Revolution Capital II, LLC, Series 3.1;
- Revolution Capital II, LLC, Series 3.2;
- Revolution Capital II, LLC, Series 3.3;
- Revolution Capital II, LLC, Series 4.1;
- Revolution Capital II, LLC, Series 4.2;
- Revolution Capital II, LLC, Series 5.1;
- Revolution Capital II, LLC, Series 5.3;
- Lembas II, LP;
- PT Ventures, LLC;
- Valor Equity Partners II L.P.;
- Valor Equity Partners III-A L.P.;
- Wiggin LLC;
- Adrem KB, LLC;
- Adrem ZIII, LLC;
- Entrepreneur First Next Stage LP;
- Valor M33 III L.P.;
- How 2 Ventures I, LP; and
- KIC Co-Invest, LLC - Class B Units.

Because the likelihood that my duties will involve particular matters affecting these entities or their investments is remote, the agency has determined that it is not necessary at this time for me to divest my interests in these entities. At this time, the funds do not pose any conflicts. However, you have explained that there is a heightened risk of a conflict of interest if any of these funds are acquiring new holdings. I understand that I am personally responsible for avoiding conflicts of interest with respect to these funds and their holdings and I will monitor the investment information made available to me regarding these funds and consult as appropriate with the Office of the Legal Adviser for Ethics and Financial Disclosure at the Department of State. If in the future the holdings of any of these funds are determined to pose a conflict with the performance of my official duties, then I may be directed to divest my interest in such funds. In that event, I will do so within 90 days of such order. With regard to each of these funds, I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the financial interests of the fund or its underlying holdings, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1), or qualify for a regulatory exemption, pursuant to 18 U.S.C. § 208(b)(2). Finally, with respect to each fund that does not qualify as an excepted investment fund, pursuant to 5 C.F.R. § 2634.310(c), I will also

timely file periodic transaction reports (OGE Form 278-T) for all covered transactions involving holdings of the fund.

If I have a managed account during my appointment, I will direct the account manager to obtain my prior approval on a case-by-case basis for the purchase of any assets other than cash, cash equivalents, investment funds that qualify for the exemption at 5 C.F.R. § 2640.201(a), obligations of the United States, or municipal bonds. I will monitor whether the account manager is following this direction regarding prior approval.

If I rely on a *de minimis* exemption under 5 C.F.R. § 2640.202 with regard to any of my financial interests in securities, I will monitor the value of those interests. If the aggregate value of interests affected by a particular matter increases and exceeds the *de minimis* threshold, I will not participate personally and substantially in the particular matter that to my knowledge has a direct and predictable effect on the interests, unless I first obtain a written waiver pursuant to 18 U.S.C. § 208(b)(1).

In addition, I will recuse myself from participation on a case-by-case basis in any particular matter involving specific parties in which I determine that a reasonable person with knowledge of the relevant facts would question my impartiality in that matter, unless I am first authorized to participate, pursuant to 5 C.F.R. Part 2635, Subpart E.

I will receive a live ethics briefing from a member of the ethics office after my confirmation but no later than 15 days after my appointment as required under 5 C.F.R. § 2638.305, unless granted an extension under that regulation. Within 90 days of my confirmation, I will document my compliance with this ethics agreement by notifying you in writing when I have completed the steps described in this ethics agreement.

I understand that as an appointee I will be required to sign the Ethics Pledge (Exec. Order No. 13770) and that I will be bound by the requirements and restrictions therein in addition to the commitments I have made in this ethics agreement.

I have been advised that this ethics agreement will be posted publicly, consistent with 5 U.S.C. § 552, on the website of the U.S. Office of Government Ethics with ethics agreements of other Presidential nominees who file public financial disclosure reports.

Sincerely,

Kenneth A. Howery

Kenneth A. Howery